

25STCV29845 25STCV29845

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BACKGROUND

This is a vehicular negligence suit. Plaintiff William Smith Jr. alleges that he was injured in a motor vehicle accident caused by Defendant Thomas Ngan while he was driving for Lyft, Inc.

On October 13, 2025, Plaintiff filed suit against Defendants Thomas Ngan and Lyft, Inc. The complaint alleges two causes of action stemming from the motor vehicle accident.

On May 8, 2026, Plaintiff filed a Motion to Quash Defendant Thomas Ngan's Subpoenas for his medical, billing, radiology, pharmaceutical, insurance, and other relevant records.

On August 7, 2026, Defendant Ngan filed an opposition.

On August 13, 2026, Plaintiff filed a reply.

TENTATIVE RULING

Plaintiff's Motion to Quash Defendant's Subpoena is GRANTED in part.

The requested documents

shall be produced, but the scope of the requests is narrowed and the documents are to be produced to Plaintiff in the first instance, as described below.

LEGAL STANDARD

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b) . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).)

Furthermore, the Court may “award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (See *id.* at § 1987.2, subd. (a).)

DISCUSSION

The Court will grant Plaintiff’s Motion to Quash in part. The production of the requested documents will be compelled, but the scope of requests will be narrowed.

“[E]ven when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy.” (Lantz v. Superior Court (1994) 28 Cal.App.4th 1839, 1854-1855, internal quotes and citations omitted.) “[I]f an intrusion on the right of privacy is deemed necessary under the circumstances of a particular case, any such intrusion should be the minimum intrusion necessary to achieve its objective.” (Ibid.)

A “[p]laintiff is not compelled, as a condition to entering the courtroom, to discard entirely [his or] her mantle of privacy.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 841.) A plaintiff who has filed a lawsuit has not completely waived his or her right to privacy by bringing suit; rather, the implicit waiver of a party’s constitutional right to privacy “encompasses only discovery directly relevant to the plaintiff’s claim and essential to the fair resolution of the lawsuit.” (Id. at p. 842; see also Hale v. Superior Court (1994) 28 Cal.App.4th 1421, 1424 [“even if part of Hale’s medical condition is in issue, it does not follow that Hale waived the privilege as to otherwise protected aspects of her medical history during her lifetime, or some condition she may have suffered from at the time of her death clearly unrelated to the accident”].)

The burden is on “the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion,” and then the court must “weigh the countervailing interests the opposing party identifies.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

Plaintiff moves to quash Defendant Ngan’s subpoenas to Anthem Blue Cross Life and Health Insurance Company, Cedars Sinai Medical Center, Surgery Center of the Pacific, Select Physical Therapy, Andrew Chuang, MD, CVS Pharmacy Incorporation, Cedars Sinai Medical Center, and Cedars Sinai Medical Center. Plaintiff seeks to quash these subpoenas because they are overly broad and will lead to unnecessary disclosure of information that is not relevant to this specific matter and impinges on Plaintiff’s privacy rights.

The Court finds that the requests seek documents likely to contain information that would be relevant to this matter. Plaintiff has put his physical condition at issue by filing this action and alleging physical injuries. (See Compl., p. 5 [“Plaintiff, who was a pedestrian, was injured and sustained damages as a direct legal cause of Defendants’ negligence and but for the negligence of Defendants, and each of them, Plaintiff would not have been injured and sustained damages.”].) The Court finds it reasonable to request documents relating to plaintiff’s medical history, insurance policies, medical bills and payment records. Responsive documents will likely contain relevant information as to the extent of

Plaintiff's injuries and Defendant's potential liability.

However, Plaintiff has privacy rights that are implicated in the requested documents. Production of all documents related to Plaintiff's medical and financial history would undermine his privacy rights and also extend beyond what is likely to be relevant to this case. Thus, in weighing Plaintiff's privacy rights with Defendant's need for relevant information, the Court will narrow the scope of the requested documents. (See *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.) This is intended to ensure the production of material that is "directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit," while maintaining Plaintiff's privacy rights as much as possible. (See *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 842.)

The production of documents will be narrowed as follows – the subpoenaed parties must produce all documents and records in their possession touching upon Plaintiff's: (1) medical history; (2) health history; (3) billing and payment history; (4) insurance plans, policies and claims[1]; (5) pharmaceutical prescriptions[2]; and (6) radiology reports. However, the requests will be limited to documents and records from the year 2022 forward. This provides for production going back just over two years before the accident to allow for consideration of medical or health issues that pre-date the accident at issue that might be relevant to the case.

In addition to the above narrowing, the productions will go to Plaintiff's counsel in the first instance for review. To the extent Plaintiff's counsel believes any produced documents should not be provided to Defendant's counsel, such documents must be set forth on a privilege log to be produced to Defendant's counsel. This was offered by Defendant's counsel during the meet and confer process. (Exh. A to Zhou Decl.) If Plaintiff's counsel believes this is not necessary or is more of an undertaking than Plaintiff's counsel is willing to make, counsel may simply inform Defendant's counsel that Plaintiff will forego this process.

The Court believes this narrowing of the scope of the requested documents along with allowing Plaintiff to conduct the first review is the appropriate balance of Defendant's need for relevant documents and Plaintiff's ability to protect his privacy rights. (See *Lantz*

v. Superior Court (1994) 28 Cal.App.4th 1839, 1854-1855.)

A.

Monetary

Sanctions

Plaintiff requests the

Court impose monetary sanctions on Defendant and Defendant also requests sanctions.

However, the Court does not think sanctions are warranted against either party.

The Court finds that both parties had substantial justification for their position. For this reason, the Court will not impose monetary sanctions.

CONCLUSION

For the foregoing reasons,

Plaintiff's Motion to Quash Defendant's Subpoena is GRANTED in part. The documents requests are to be narrowed as stated herein and documents produced first to Plaintiff's counsel.

No sanctions are
awarded.

[1] The Court recognizes Plaintiff's argument that Defendant's subpoena for insurance-related documents is prohibited because it violates the work-product and attorney-client privilege. (See Motion, p. 17:13-25.) To the extent that any such protection or privilege would apply, Plaintiff's counsel may put such documents on a privilege log and withhold them.

[2] The Court recognizes Plaintiff's argument that Defendant's subpoena to CVS Pharmacy is improper and violates California and Rhode Island law. (See Sep. Stmt., p. 6:17-26.) However, Plaintiff does not specifically state which laws the subpoena is breaking or demonstrate how the subpoena is breaking said laws. Therefore, the Court is not convinced that Defendant's subpoena to CVS Pharmacy is improper. Again, if Plaintiff's counsel believes any produced documents should not go to Defendant, the documents may be withheld and put on the privilege log.